Statement

Sensitive

Statement in the matter of R v Vida REID

Name	Barry Ross MacDonald
Occupation	Retired
Address	Known to National Disability Insurance Scheme (NDIS)
Date	11 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Barry Ross MacDonald.

3. My residential address is known to the National Disability Insurance Scheme.

4. I first came into the NDIS nearly two years ago due to a of various medical issues, The disables listed on my plan are dementia, PTSD, metal illness, anxiety, depression and back and neck injuries.

5. My Participant number is 431 516 344 and my current support coordinator is Stevie Thomas who works for Support Coordination WA. Plan Care is my Plan Manager.

6. My initial plan was for a period of twelve months and I have since had my plan renewed for another twelve months from 10 February 2022 to 10 February 2023.

7. When I got my original plan, My Way was providing my supports. My Way referred me to Forward Focus Group (FFG) in approximately April 2021. From that point FFG were a coordinator and tasked to coordinate the delivery of services under my plan. I originally dealt with a lady called Mira and after that it was another lady

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Signature

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Witness

called Terri Roberts. In the middle of last year, Vida Reid from FFG took over the coordination of my supports.

8. I first met Vida at a meet and greet at her offices as she wanted to show me her new offices in Jull Street Armadale and introduce themselves to me. I also met her business partner and husband Simon Reid at the same time. They were initially required to complete a report in relation to my support hours and home modifications.

9. In relation to the home modifications FFG sent a company call Modplex to provide a quote regarding bathroom modifications and a ramp out the front of my house. I think the Modplex representative was Jon DUNN. This was a couple of weeks after the meet and greet I had at their office; Vida had said that Jon was a good friend of hers and they were cheap and that they would do a good.

10. I was provided an initial quote for about $45,000.00. Nothing happened a result of that quote as the paperwork was not done properly and there was not enough funding left in my Plan. There have been no modifications done to date.

11. FFG never provided me with Household Cleaning and Other Household Activities. On 11 October 2022, I was told by Gerard Righetti from the NDIA that they had claimed $24,517.10 against my Plan for delivering this support between 1 May and 17 July 2021. They have absolutely no reason to claim this amount and those services were not delivered.

12. I have never heard of either Provider Choice Plan Management Pty Ltd or Provider Choice. I have never been provided with any Plan Management services by either of these businesses or any other supports.

13. FFG have only ever provided me a quote in relation to the home modifications and a falls watch which has fall detection technology built into it. FFG also provided me a phone which is required to make the falls watch work and to make any emergency calls.

14. In the middle of last year, after the meet and greet at their office, I received a service agreement by email from FFG even though they knew everything was supposed to be printed and mailed to me. The service agreement specified that they were to provide me with Support Coordination and Support Workers/Domestics for assistance with daily living activities.

15. When I looked at the document, in particular paragraph 14. Heading 'Acknowledgement', I saw what was supposed my signature in this paragraph. This is not my signature and is vastly different from my signature. There was also a checklist that had not been completed. This paragraph was also signed by Vida Reid.

Exhibit: I now produce service agreement dated 13 May 2021, consisting of 8 pages – marked as Annexure BM 01.

16. In about June 2021, I received a letter from FFG signed by Vida Reid stating that they, FFG, wished to proceed with an application for the Public Trustee to assume guardianship and administration of my personal and financial affairs.

17. I was very concerned and frightened that I might be institutionalised and have no control over my life. I did not understand why this was happening and could not think of a valid reason for them to do this. This matter was heard at The State Administrative Tribunal 11 November 2021 and the application was dismissed. This application caused me extreme distress and emotional hardship.

18. In September 2021, I decided to end my relationship with FFG as their services were unsatisfactory. By unsatisfactory, I mean their services were minimal and contrary to my best interests. I had also received the letter from them regarding their application to have me go under the guardianship of the Public Trustee. I sent them email saying that their services were no longer required. I sent this email to Vida Reid she did not acknowledge receipt of this email.

This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.





....

Signature Witness

Signature _____
Barry Ross MacDonald

Statement taken and signature witnessed by me about 11.55am on 11 October 2022 at Koondoola in Western Australia.

Signature _____

Gerard Righetti
Assistant Director Fraud Investigations

Perth, Western Australia

Forward Focused Individual Service Agreement – NDIS Support Coordination

This Service Agreement is for a participant in the National Disability Insurance Scheme and is made between:

Participant/Participant's representative	**Barry MacDonald**

AND

Provider	**Forward Focused Group (FFG)**

(each a **Party** and together the **Parties**)

For the provision of services to:

Participant	**Barry MacDonald**
Participant Plan Number	431516344
Service/plan Dates	4 August 2020 to 4 August 2021

The NDIS and this Service Agreement

This Service Agreement is made for the purpose of providing support services (**Supports** or **Services**) under the Participant's National Disability Insurance Scheme (**NDIS**) Plan.

The Parties agree that this Service Agreement is made in the context of the NDIS, which is a scheme that aims to:

- Support the independence and social and economic participation of people with a disability; and
- Enable people with a disability to exercise their choice and control in pursuit if their goals, and the planning and delivery of their supports.

The terms and conditions contained in this Service Agreement (as varied from time to time in writing) will apply to any Services provided by FFG.

Glossary of Terms

FFG means the provider of Services under this agreement (otherwise known as **we** or **us**).

NDIA means the National Disability Insurance Agency.

Service Agreement means this agreement and any attached documents or schedules.

You means a person who is a receiver of Services or a person such as a family member or friend who has authority to act on behalf of the service recipient under the National Disability Insurance Scheme, as the context requires.

1. FFG's responsibilities

We will use our best efforts to:

(a) Provide the Services described in clause 4 of this Service Agreement, and/or the attached Schedule of Services, as varied from time to time;

(b) Plan with you for the provision of the Services as outlined in your NDIS plan;

(c) Consult with you about how Services will be provided and times for these Services;

(d) Review the provision of your Services quarterly;

(e) Communicate any changes, and discuss with you any barriers, to delivering any Supports or Services as per the plan, including those outside of our control;

(f) Provide you with information about our procedure for the reporting and management of complaints;

(g) Provide you with details of our Cancellation Procedure – See Point 6.

(h) Provide a minimum of 24 hours' notice where possible, when we have to change a scheduled appointment to provide the Services;

(i) Comply with all rules and regulations regarding the privacy of your personal information;

(j) Keep accurate records on the Services provided to you;

(k) We only work 9 am to 5 pm Monday to Friday. We will not respond to sms or calls after or before these hours.

(l) We can only link you to supports that fall into the guidelines of the NDIS act 2013 of reasonable and necessary criteria.

(m) Our job is not case management as we are support coordinators. We will only connect you to the supports you ask us to and link you to them.

(n) We ask that you have realistic expectations and work with us to achieve a good outcome.

(o) Provide the Services in a manner consistent with all relevant laws, including the National Disability insurance Scheme Act 2013, and the Australian Consumer Law; and (l) Provide you with regular statements of the Services we deliver to you.

(p) We will not provide transport assistance, pick or drop you off to places as that is outside of our role. We will only meet you where you have asked us to and then leave. Most of our work will be done over the phone as we are here to connect you to supports. We are not support workers.

(q) From time to time as required we may have to work with other organisations for our complex case clients and as such we will also charge the costs incurred for sourcing additional supports.

2. Your obligations

You agree that, during the duration of this Services Agreement, you will:

(a) Inform us of how you would like your Services to be provided by us to meet your needs;

(b) Always treat FFG Support Coordinators with courtesy and respect.

(c) Communicate with FFG Support Coordinator if you have any concerns about the Services being provided in accordance with our procedure for the reporting of complaints.

(d) Comply with all of the terms of this Services Agreement; and

(e) Immediately inform FFG Support Coordinator if your NDIS plan is suspended or replaced by a new NDIS plan or if you stop being a participant in the NDIS.

(f) Not ask us to provide supports outside of our role.

3. NDIS plan outcomes

Support type	**Outcome**
Support Coordination	**Assistance to strengthen Barry's ability to coordinate and implement supports, strengthen their broader system of support and coordinate a range of both funded and other government services through counselling therapy.**
Support Worker / Domestics	**Assistance with daily living activities.**

4. Services

The Services to be delivered by FFG in this Services Agreement set out below and will be limited to the type and level of the funding allocated to FFG in your NDIS plan.

FFG will not provide any Services or Supports that exceed the level of funding allocated to FFG in your NDIS plan.

All fees or charges for Services or Supports under this Services Agreement will be in accordance with the NDIS Price Guide. **Capacity Building budget**

Support Coordination is included in the Capacity Building budget. This is a fixed amount for strengthening participants' abilities to co-ordinate and implement supports in their plans and to participate more fully in the community.

Support type	Cost	Support delivered When/Where/How
Support Coordination	$5,000.00	By FFG
Support Work	$5,000.00	By FFG

FFG Support Coordinator Responsibilities subject to your funding

- Provide information and supports that may be available to you
- Ensure that you have genuine choice and control of your NDIS plan
- Support you in resolving service delivery issues
- Regular management of your supports throughout your NDIS plan
- Develop and collating reports for reviews

5. Reports

FFG is required to provide report(s) to the NDIA 6 weeks before your plan is due for review. The report will document how the Services provided by FFG have contributed to the achievement of goals in your NDIS plan as well as provide recommendations to inform your future NDIS plan. **6. Cancellations**

(a) If:

i. a Service is less than 8 hours' continuous duration; and

ii. the total price for the Service is less than $1,000.00

then you must provide at least 2 clear business days' notice to cancel or reschedule that Service.

(b) For any other Services, you must provide at least 5 clear business days' notice to cancel or reschedule that Service.

(c) If you do not provide the notice required under this clause, we may charge you up to 90% of the charge for that cancelled or rescheduled Service.

7. Occupational Safety and Health

An Occupational Safety and Health Assessment Report of your premises may be completed and provided by FFG. A copy will be kept in the FFG file at your residence if required.

An Individual Care Plan and Service Planner can be completed by FFG staff and kept on file at your residence (if applicable).

8. Payment for the Services

The Services provided by FFG must be paid to FFG by:

(a) NDIA

(b) the Participant, if your NDIS plan is self-managed; or (c) **a nominated plan manager if** your NDIS **plan** is **managed**.

[delete/cross out whichever is not applicable].

If you or your nominated plan manager are responsible for payment of the Services:

(a) FFG will issue fortnightly invoices for the Services; and

(b) Payment for the Services must be made within 14 days of the date of each invoice.

You may also request an activity statement at any time.

Where the Services are paid by the NDIA:

(a) FFG will issue weekly invoices to the NDIA.

(b) The pricing in your plan is inclusive of the time required for all activities related to the Service including assessment, planning and preparation, liaison, report writing, training, direct contact (e.g. face to face, phone, teleconference, skype, email) and indicate the potential hours for assessment, planning and intervention. For example, NDIS will pay for a physiotherapist to write a report to NDIA, or for the time taken to liaise with other service providers/health professional regarding your care/services or research on your behalf.

(c) If the NDIA change the price payable to service providers for the Services:

   a. your plan will be automatically adjusted to account for the increase in prices; and

   b. we may increase the prices we charge to you in accordance with any corresponding increase in the prices payable to service providers by the NDIA.

(d) There can be a delay in between the expiry of this plan and the completion of a new service agreement for your renewed plan. FFG will continue to provide Services in accordance with this Service Agreement after the expiry date of your current plan to ensure continuity. If you decide to use another service provider for your renewed plan, please notify FFG of this immediately. You will need to ensure that FFG receive payment for the Services during this period, in accordance with this Service Agreement.

(e) If you receive notification that the NDIA has, for whatever reason, withdrawn funding for the Services, you must notify FFG within 7 days. If you do not notify FFG within 7 days, you may be personally be liable for payment of any Services provided by FFG.

9. Provider Travel

We will charge you for travel in accordance with the NDIS Price Guide, as amended from time to time.

10. Changes to this Service Agreement

If changes to the Services, or their delivery, are required, FFG and the Participant agree to discuss and review this Service Agreement.

From time to time, FFG can make alterations to this Service Agreement due to changes in the policy and procedure of the NDIA.

FFG and the Participant agree that any changes to this Service Agreement will be in writing.

11. Ending this Service Agreement

Either Party may terminate this Service Agreement by giving the other Party one month's notice in writing.

12. Feedback, Complaints and Disputes

Feedback, complaints and disputes The FFG welcomes feedback.

How to raise your concerns and complaints:

1. Tell your support staff or your case manager. This is often the quickest way to address and resolve your concerns.
2. You can also raise your concerns and complaints with the Manager of the service.
3. FGG's website https://forwardfocusedgroup.com.au also has a Feedback Form you can complete. This form will be sent to the FFG's Manager Policy, Planning & Development.

If you are not satisfied or do not want to talk to this person, you can contact the National Disability Insurance Agency by calling **1800 800 110**, visiting one of their offices in person, or visiting the website **ndis.gov.au** for further information.

13. Goods and Services Tax (GST)

All prices are GST inclusive (if applicable).

For the purposes of GST legislation, you agree that:

The Services described in this Service Agreement are reasonable and necessary supports specified in the statement of supports in the Participant's NDIS plan currently in effect under section 37 of the *National Disability Insurance Scheme Act 2013*;

The Participant's NDIS plan is expected to remain in effect during the period the Services are provided; and

The Participant/Participant's representative will immediately notify the FFG if the Participant's NDIS Plan is replaced or the Participant stops being a participant in the NDIS.

14. Acknowledgement

Participant/Participant's representative agrees that this agreement has been explained and agrees to receive the Services from FFG on the terms and conditions set out in this Service Agreement.

Signed by:

Name: Barry MacDonald

Signature: [signature]

[Participant / Participant's representative]

[Participant / Participant's representative]

Date: 13/05/2021

Name: Vida Reid – Executive Director

Authorised person from FFG

Signature: Vida Reid

Authorised person from FFG

Date: 13/05/2021

FFG contact details:

FFG Address	**Perth Metropolitan**
Contact Name	**Vida Reid**
Contact Number	**0478889648**

FFG/NDIS Service Agreement check list

- ☐ I understand what is expected of me
- ☐ I understand what is expected from FFG
- ☐ I understand what services I have agreed for FFG to deliver
- ☐ I understand what services will be delivered by FFG and how they will be charged
- ☐ I understand what to do if I want to make changes to this Service agreement
- ☐ I understand what is expected of me if I want to make changes to my services
- ☐ I understand what is expected of me if I want to end this Service agreement
- ☐ I understand what to do if I have a problem and I know who to contact

- ☐ I have signed the Service agreement acknowledgement
- ☐ I have provided FFG a copy of my NDIS plan
- ☐ I have a copy of this Service agreement for my records or a copy will be sent to me

I have completed this checklist and by signing here indicate that I understand this Service Agreement

Name: ***[Participant / Participant's representative]***

Signature: _____ ***[Participant / Participant's representative]***

THIS IS NOT BARRY SIGNATURE, NOR HAS BARRY COMPLETED THE CHECKLIST

Date: